

Universal Franchise and India's Electoral System

CHAPTER 5

[India] adopted the principle of adult franchise with an abundant faith in the common man and the ultimate success of democratic rule...never before in the history of the world has such an experiment been so boldly undertaken."

– Alladi Krishnaswami Ayyar

November 1949, Constituent Assembly Debates



Fig. 5.1. Headlines of major newspapers during the 2024 Lok Sabha elections

The Big Questions ?

1. What is universal adult franchise?
2. What is an electoral system?
3. How does India's electoral system work?

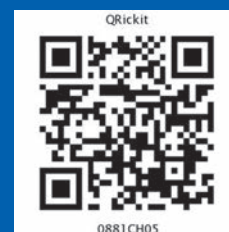




Fig. 5.2.

Franchise:
A right granted by the constitution or government. Another term that is used is 'suffrage' a synonym of franchise.

UNIVERSAL ADULT FRANCHISE

The Constitution makers decided that universal adult **franchise** would be a feature of Indian democracy right from the outset. This means that every adult citizen gets one vote, and all votes have equal value. Hence, every Indian citizen aged 18 and above has the right to vote — irrespective of caste, creed, race, religion, gender, education, income, etc. The word 'universal' connotes this.

LET'S EXPLORE

India changed the minimum age for voting from 21 to 18 in 1988. Discuss whether this was a good move.

Universal franchise is a cornerstone of Indian democracy. Elections to the Lok Sabha, the legislative assembly of every state and union territory, and all the local elections in villages and cities are based on universal franchise (Article 326 of the Constitution). Remember that no one can vote on another's behalf.

→ Can you calculate how long **you** have to wait before you can vote?

To be able to exercise your right, you need to be registered as a voter in your **constituency**. However, one is barred from voting if found guilty of committing certain serious crimes.

Do you remember India had a general election in the summer of 2024? About 980 million voters were eligible to exercise their franchise for the 543 constituencies of the Lok Sabha.



DON'T MISS OUT

India has 3.1 million elected representatives (1.3 million of them women) in more than 250,000 local government bodies across India. All these are democratically elected through universal adult franchise.

We need an elaborate and well-organised system to manage this massive exercise and ensure that the elections take place fairly and freely. In this chapter, we will briefly explore who can vote, a few of the types of elections we have, the electoral **system**, and how it is organised.



DON'T MISS OUT

→ Before Independence, only 13 per cent of Indians were allowed to vote, and franchise was not universal. We will delve more into this in another part of the textbook.

→ India was among the early nations to grant women the right to vote, ahead of many others around the world. For example, women were given the right to vote in Switzerland only in 1971. Women fought long and hard in many countries to win this fundamental democratic right. In India, on the other hand, a progressive constitutional vision and deep democratic values rooted in India's ancient traditions ensured women had voting rights from the very beginning.



Fig. 5.3. Women's suffrage parade, USA, 1913

Constituency:

An area whose voters elect a representative to a legislative body.

System:

A group of interconnected or interdependent elements that work together to achieve a common purpose or function.

LET'S EXPLORE



In 1947, our literacy rate was about 14 per cent, only about 8 per cent among women. Some argued that the right to vote should be given only to literate people. Discuss in your group why the Constitution makers may have decided on universal franchise from the time of Independence itself.

There are several reasons why universal franchise is so important. A few are illustrated in the mindmap below. Can you add some more?

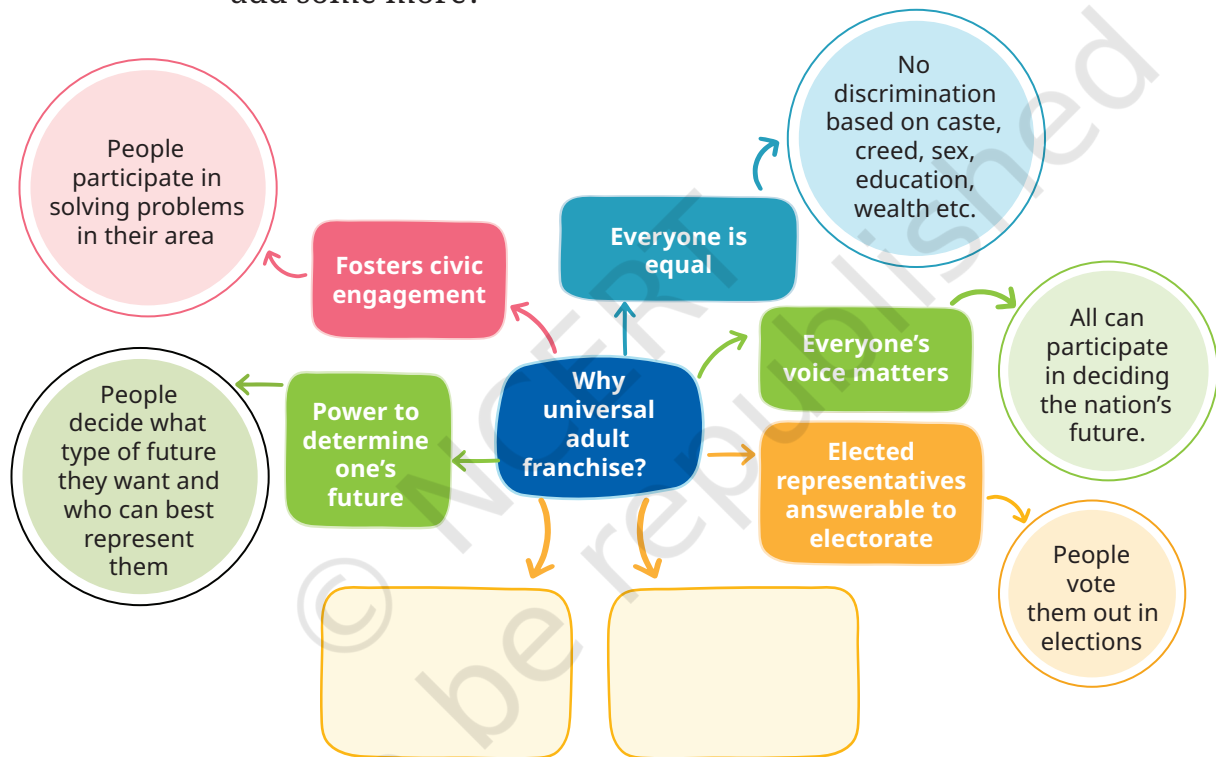


Fig. 5.4. Importance of universal franchise in a democracy. Add two reasons of your own in the empty boxes.

BRIDGING BARRIERS, ENABLING PARTICIPATION: ENSURING UNIVERSAL FRANCHISE

Democracy thrives when every eligible citizen can freely and fairly participate in the electoral process. Voting in elections is a powerful way for people to express their will. How does this take place in India?

India is a large, diverse, and complex country. To illustrate, the population of eligible voters in India is fifteen times the population of the United Kingdom, and in terms of area, India is six times larger than France. Geographic diversity is a challenge, too. Thus, elections in India need to be organised taking this complexity into account.

The Election Commission of India organises elections in India. (We will learn more about ECI later in the chapter.) The ECI has taken several innovative accessibility measures to remove barriers to exercising the franchise and ensure no voter is left behind.

Electoral officials travel to remote locations to ensure every citizen can exercise their democratic right. In 2024, for the first time, the elderly and people with disabilities could cast their votes from home, and the postal voting option was available for a specific category of voters. Assistive technologies like braille-enabled voter cards and app-based requests for assistance, including wheelchairs and ramps, were also made possible.

LET'S EXPLORE

- Discuss in groups — What role do such measures play in a democracy? Do you know of anyone who benefited from these improved accessibility measures? How might they increase voter participation in your neighbourhood? How can technology assist?
- If you have access to the internet, visit the ECI website (<https://www.eci.gov.in/persons-with-disabilities>). Read and identify the various interventions that the ECI has taken to facilitate voting by people with disabilities.

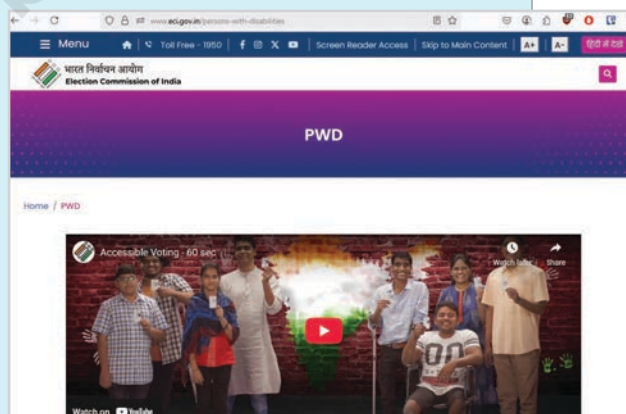


Fig. 5.5.



Fig. 5.6. India's electoral system endeavours to enable every citizen to exercise their franchise. This includes measures such as organising a polling station for a single woman voter, postal voting and providing wheelchair assistance.

LET'S EXPLORE

About 34 per cent of eligible voters did not exercise their right to vote in the 2024 elections. Why do you think this is so? What are some challenges people face in exercising their rights? Design and conduct a short survey among adults in your family and neighbourhood to answer these questions. Analyse the data and write a report with suggestions on how it may be possible to ensure everyone votes.



DON'T MISS OUT

The Uttaramerur inscriptions from the 10th century describe a transparent process for the selection of representatives. Eligible candidates' names were written on fragments of palm leaves and placed in a pot, which was then sealed. On the selection day, it was opened publicly and a young boy drew the palm leaves randomly one by one; a respected individual, after showing his empty hands to the public, would read out each name of the selected candidates.

Election for class representative — Grade 8, Suryodaya School

It was time for the annual election of the Class Representative (Class Rep). The Class Rep would represent the class in meetings with teachers, organise events, and act as a bridge between the students and school authorities. Three students — Ahmed, Gurmat, and Ravi — decided to contest for the position. The class teacher, Ms. Usha, was appointed as the Election Officer to ensure the election process was fair, transparent, and followed all the necessary rules.



Fig. 5.7.

Here's a brief introduction of each of the candidates:

Ahmed promised to improve the cleanliness of the classrooms and the playground.

Gurmat was interested in helping all her classmates learn better. She proposed creating a system of peer coaching and mutual support.

Ravi wanted to make more space in their class timetable for the arts curriculum — music, theatre, and visual art — in line with the new curriculum.



Fig. 5.8.

Campaigning:

Ahmed put up posters, Gurmat used the noticeboard and spoke to classmates, while Ravi held a lunchtime music performance to promote his idea. As the Election Officer, Ms. Usha had to organise the elections and ensure it was conducted fairly. She explained the rules to the class, ensuring everyone understood how the secret ballot voting process would work; no one would know who voted for whom, ensuring the process was private and fair. She set up the voting booths in the corner of the classroom.

Voting day:

On election day, each student was given a ballot paper with the names of the three candidates. The students were asked to mark an 'X' next to the name of the candidate they wished to vote for. Ms. Usha also ensured that there was a ballot paper in braille for Neha. After all the students voted, Ms. Usha collected the ballots in a box and sealed it until the counting session.

The results:

After all the 33 votes were cast, Ms. Usha called Ms Sheeba from the next class to witness the counting process. One of the ballot papers was not marked, so it was declared invalid. The results were announced: Ahmed received 8 votes, Gurmat 12 and Ravi 10. Gurmat, with the most votes, was declared the new Class Representative. She thanked her classmates and promised to fulfil her commitments. Ahmed and Ravi congratulated her and offered to support her.

LET'S EXPLORE

- What are the most important aspects of the election process in this caselet?
- Why was it important to have a secret ballot?
- What considerations might the students have had while exercising their choice?
- Do you think the students have any responsibility after Gurmat was elected as the class rep? If yes, what are they?
- What was the role that Ms. Usha played? Why was it important?
- Why was it important for Ms. Usha to organise a braille ballot paper for Neha?
- What would happen if many students in the class chose not to mark a preference?



DON'T MISS OUT

Imagine if a student did not want to vote for any of the candidates — Ahmed, Gurmat, or Ravi. What option would they have? Some countries, including India, offer an additional option, **NOTA** — **None Of The Above**. This option allows voters to reject all candidates if they are not satisfied with any of them. It doesn't change the result but sends a message — voters want better choices. NOTA is a quiet but powerful tool in a democracy.

THE ROLE OF THE ELECTION COMMISSION OF INDIA (ECI)

We have seen the size and diversity that needs to be kept in mind in the organisation of the election process in India. In this section, we will look at the different types of elections that the ECI organises and oversees.



LET'S REMEMBER

India is a parliamentary democracy where, at the national level, citizens choose representatives for the Lok Sabha (the lower house of the Parliament). They focus on issues affecting the entire country. In addition, voters elect representatives from their constituencies to the legislative assemblies in the state and union territories where they are registered. These members focus primarily on regional issues.

These are just two of the elections that the ECI manages; we will see more in the later sections. However, before we get a glimpse of the election process, let us get introduced to the Election Commission of India, the institution that oversees it.



LET'S REMEMBER

In Grade 6, you read about direct elections to gram panchayats and urban local bodies. The State Election Commissions manage these.

Election Commission of India — A brief introduction

The Election Commission of India (ECI) is an independent constitutional body responsible for conducting free and fair elections. It was established in 1950 and conducts elections to the Lok Sabha, Rajya Sabha, State Legislative Assemblies in India, and the offices of the President and Vice President. The first general elections in independent India were held in 1951-1952.

The ECI performs crucial tasks like:



Fig. 5.9. Tasks performed by the Election Commission of India



Fig. 5.10. Office of the the Election Commission of India in Delhi

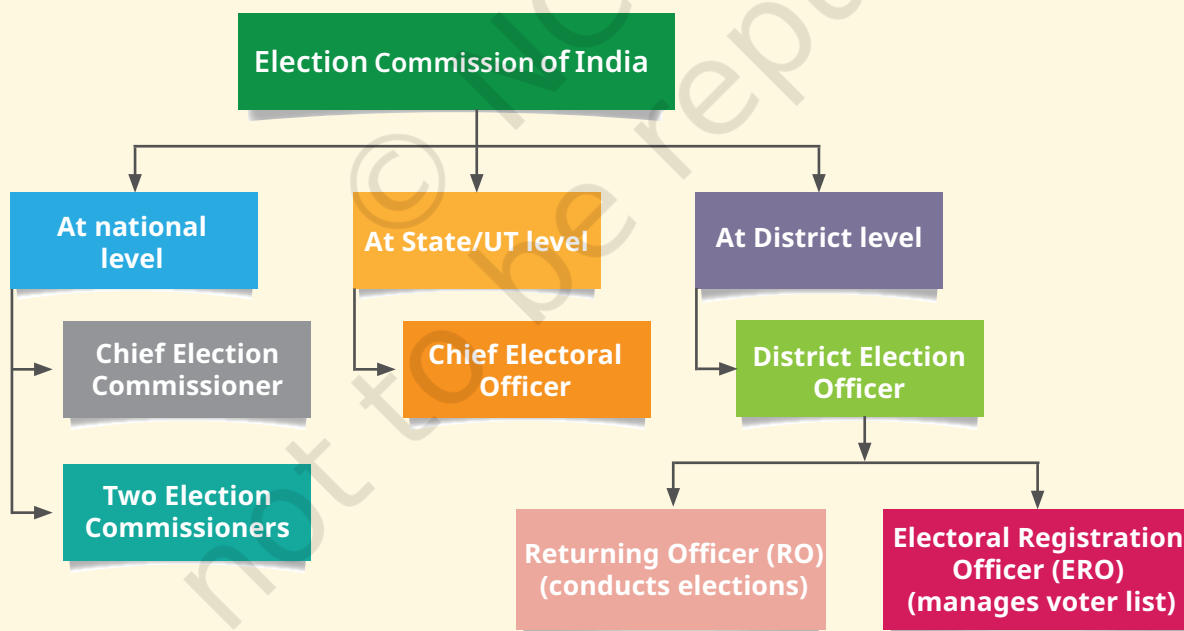


Fig. 5.11. Structure of the Election Commission of India

Managing the electoral process

Managing elections in India is a mammoth task. The ECI has been upgrading its capacities to keep pace with the needs of modern India in conducting free and fair elections. The electoral system is massive and needs to work efficiently. We take the example of the Lok Sabha elections to illustrate this. Note that the elections to the state assemblies follow a similar process. All elections take place at different times but with some periodicity; so every year, several polls are conducted in various parts of the country based on when they are due.

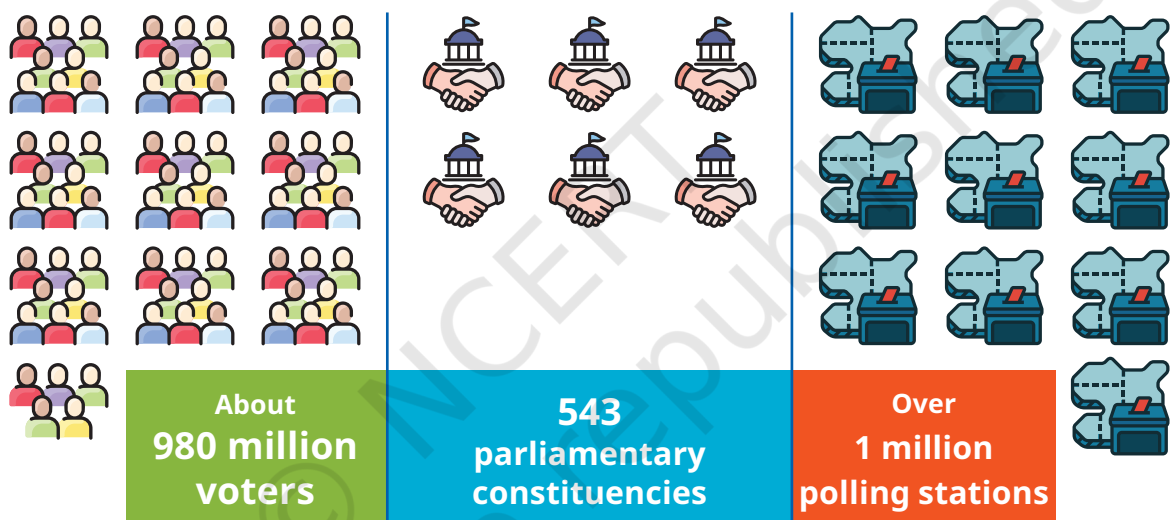


Fig. 5.12. A few numbers showing the scale of the 2024 Lok Sabha elections.

As you can see, the numbers are very large. Many people are deployed to assist the whole process, including teachers.

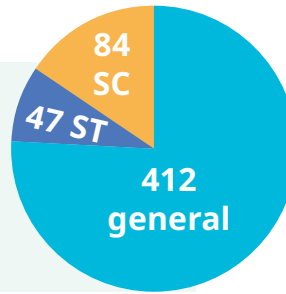
LET'S EXPLORE

Identify teachers in your school or vicinity who may have performed election duty. Invite them to your class to share their experiences.



DON'T MISS OUT

84 of the Lok Sabha constituencies are reserved for persons from the scheduled castes, while 47 are reserved for scheduled tribes.



Process of voting for the Lok Sabha and State assemblies



1st polling officer:
Checks name on voter list and ID proof.



2nd polling officer:
Inks finger, gives chit and takes your signature.

3rd polling officer:
Takes chit and checks your finger. NOTA (None Of The Above) option is also available.



4th Press button to vote on the electronic voting machine (EVM); you hear a beep sound. **Also check the printed slip in VVPAT.**

Fig. 5.13.



Fig. 5.14. Managing the elections — extensive use of technology



Fig. 5.15. Shyam Saran Negi, a school teacher in Himachal Pradesh, was the first voter in India's general elections of 1951. Here, in 2017, he cast his vote at the age of 100.

LET'S EXPLORE



→ India's electronic voting machines (EVMs) and Voter Verifiable Paper Audit Trail (VVPAT) systems have been used in countries like Namibia and Bhutan with support from the ECI. Other countries have also studied this technology and have received training from India to adopt it in their countries.



Fig. 5.16. Electronic voting machines

→ VVPAT is a system that produces a physical paper record, allowing voters to verify that their electronic votes were cast correctly. This paper trail provides a backup for verification and recounting purposes in case of disputes or failures of the electronic system.

Model Code of Conduct (MCC)

The code is followed to ensure free and fair elections, listing the dos and don'ts for leaders, political parties, and candidates that must be adhered to.

A few elements of the code:

- i. There are rules that the party in government must follow; this ensures that the resources available to the government are not used for the purpose of the elections. For example, no new schemes and projects are to be announced that may influence voters.
- ii. All candidates are expected to exercise discretion and restraint to ensure that the elections take place peacefully.
- iii. Influencing voters through gifts in return for votes is punishable.

LET'S EXPLORE

→ Here are a few types of complaints that the ECI handles.



Fig. 5.17. A candidate distributed saris and household appliances to women voters.



Fig. 5.18. Abusive language used by the candidate of one party against the candidate from an opposing party.



Fig. 5.19. Officials of the government campaigning for the ruling party.



Fig. 5.20. Bundles of ₹500/- notes found in the car of a candidate during inspections.

→ Why do you think these might be violations of the code of conduct?



DON'T MISS OUT

The Model Code of Conduct was adopted in Kerala in 1960, voluntarily approved by representatives of the major political parties of the time. The ECI circulated it to political parties during the 1962 general elections, and from 1991, the ECI became proactive in ensuring the observance of the MCC.



DON'T MISS OUT

T.N. Seshan became the Chief Election Commissioner in 1990. He brought in reforms to ensure free and fair elections, among them: campaigning to follow precise rules, voter IDs to eliminate proxy voting, and strict vigilance on spending by candidates. T.N. Seshan worked hard to protect the rights of voters and is often remembered as the officer who made Indian elections fairer, transparent and fearless!



Fig. 5.21. T.N. Seshan



LET'S EXPLORE

When is the next election in the region where you are located? Is it to the state, urban local body or panchayat?

UNDERSTANDING ELECTIONS IN INDIA — A VERY BRIEF OVERVIEW

Election to the Lok Sabha and State Legislative Assemblies

Elections in India are often referred to as the 'Festival of Democracy' — a time when citizens exercise their right to choose representatives freely, fairly, and responsibly.

We know that India follows a parliamentary system of government where citizens participate in various levels of elections — Lok Sabha (national level), state legislative assemblies (state level) and local bodies (city and village level). The country is divided into 543 constituencies for the Lok Sabha elections. The elected candidates to the Lok Sabha are known as **Members of Parliament** (MPs), whereas candidates elected to state assemblies are known as **Members of Legislative Assembly** (MLAs). India uses the 'First-Past-the-Post' electoral system, wherein the candidate receiving the most votes in a

constituency wins. This means that a candidate can win without securing even 50 per cent of the total votes (like Gurmat won despite getting only 12 out of the 33 votes).



DON'T MISS OUT

The legislative assembly is called by several names in regional languages, for example, Vidhan Sabha and Niyama Sabha. What is it called in your state?

After the voting process is completed, the process of government formation begins. The political party or **coalition** winning a majority of the seats in the Lok Sabha forms the national government. The leader of this majority typically becomes the prime minister. Similarly, at the state level, the leader of the majority party becomes the chief minister.

Coalition:
A group of two or more parties working together

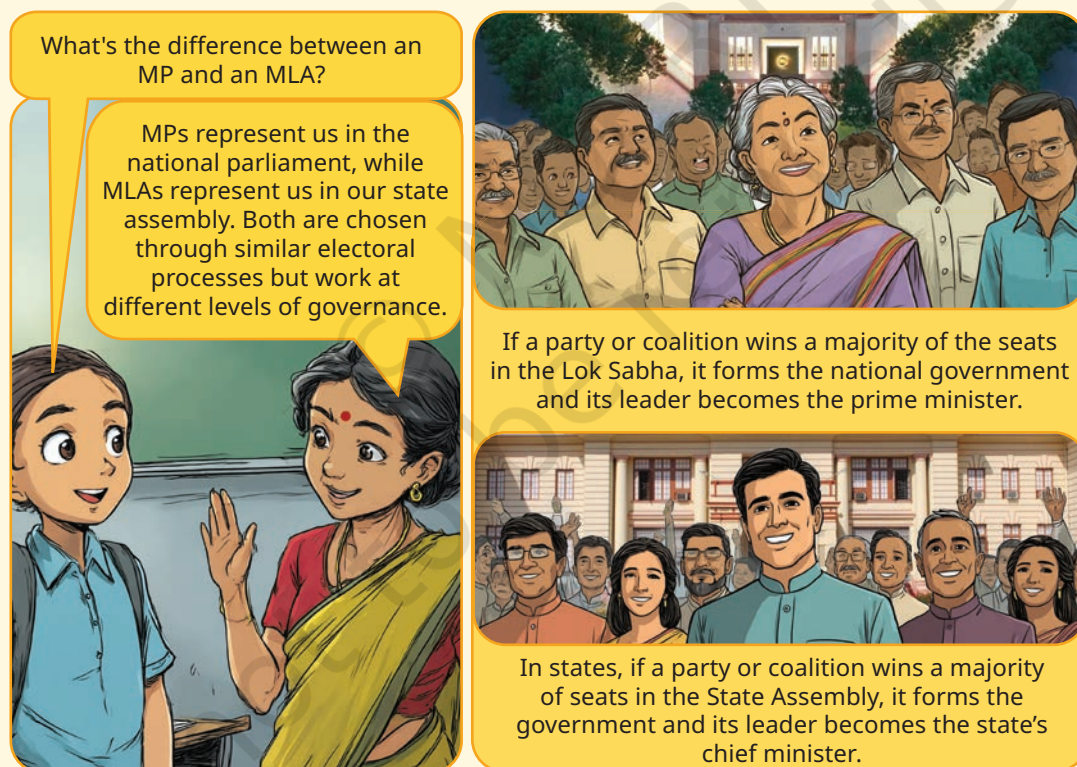


Fig. 5.22

As we saw in Fig. 5.11, the State Election Commission is a part of the election apparatus. It plays an important role not only in general and state elections but also in conducting elections to

local bodies at the grassroots level. It works in consultation with the ECI in these matters, and universal adult franchise, and all other Constitutional provisions applicable in the case of direct elections by the people are pertinent here too.

LET'S EXPLORE



- Who are the MP and MLA / MLAs of the constituency you are located in? (A Lok Sabha constituency may have two or more assembly constituencies.)
- Which party does each of them belong to?
- What are the concerns of the MP and MLA, respectively?

Election to the Rajya Sabha

The candidates elected to the Rajya Sabha are also known as Members of Parliament (MPs), but they are chosen through **indirect elections**.

Let us revisit the example of Suryodaya School. Imagine that the school is setting up a special council at the school level. If the members of this council are elected by the class representatives, it would be an indirect election.

Of the 245 members of the Rajya Sabha, 233 are elected by the elected members of the state legislative assemblies (MLAs), while the President of India nominates 12. Each state is allotted a different number of Rajya Sabha seats based on population. For example, more populous states like Uttar Pradesh have more seats than less populous states like Arunachal Pradesh.

The Rajya Sabha is also called the Permanent House — it is never **dissolved**. A member of the Rajya Sabha has a six-year term. One-third of its members retire every two years, and new members are elected.

There is a difference, however, in the voting process. It uses what is called a '**single transferable vote system**'. This is a special way of ensuring that smaller states also get fair representation in the Rajya Sabha. You will learn more about the exact mechanism of how this works in higher classes.

Dissolution:
Expiry or
termination
due to the
end of its
term or other
Constitutional
reason

Rajya Sabha: The Council of States

MLAs
↓
Vote in
indirect
elections
↓
Elect 233
Rajya Sabha
members

President of
India
↓
Nominates
12 members

Rajya Sabha members are elected by MLAs through **indirect elections**, while the President nominates 12 distinguished individuals.



Seat allocation is based on state populations; more populous states like Uttar Pradesh have more seats.



Rajya Sabha is a **permanent body**; one-third of its members retire every two years, ensuring continuity.



MLAs vote using a single transferable vote system, ranking candidates by preference.

Fig. 5.23

Bicameral legislatures:
A bicameral legislature is a system where the legislative body is divided into two separate chambers or houses.

Election of the President of India

The **President of India** is not directly elected by the common people. Instead, an electoral college is formed to carry out the election. This Electoral College consists of:

- Members of Parliament (MPs) from both the houses of the Parliament — Lok Sabha (Lower House) and the Rajya Sabha (Upper House)
- Members of the Legislative Assemblies (MLAs) from each of India's states and the union territories of Delhi and Puducherry

The single transferable vote system is followed in this election. Since the president represents the whole country, this method ensures the support of both the central and state governments. The rules for voting and counting are very elaborate; the more populous states have a greater say. (We need not go into the details at this stage.)

The following group of people is **not involved** in electing the President of India:

- Nominated members of Rajya Sabha (12)
- Nominated members of State Legislative Assemblies
- Members of Legislative Councils (both elected and nominated) in **bicameral legislatures**
- Nominated members of union territories of Delhi and Puducherry



THINK ABOUT IT

Why do you think the above group of people is not involved in electing the President of India? Why are the common people not involved in the election of the president?

It is because this ensures that only directly elected representatives vote to elect the President. This maintains democratic legitimacy, as the President is meant to represent the will of the people, indirectly but meaningfully.

Election of the Vice President of India

The Vice President of India is elected by an electoral college consisting of the elected and nominated members of both Houses of Parliament; again, the system of single transferable vote is used.

The vice president is the chairperson of the Rajya Sabha. If there are situations when the president is not able to discharge their function, the vice president steps in to play the role.

CHALLENGES AND THE ROAD AHEAD

India's electoral system is celebrated as the world's largest democratic exercise. However, like all systems, it faces its share of challenges. Issues such as the growing influence of money in elections, a significant proportion of candidates with criminal records, and voter apathy, (particularly in urban areas), raise important questions about the health and future of our democracy.

The way forward lies in empowering voters with the information they need to make thoughtful and responsible choices. Media, education, and awareness campaigns must work together to help people, especially the youth, understand the importance of voting wisely. An aware and vigilant voter is the strongest safeguard of a democratic system. It starts with asking the right questions — and ends with casting a responsible vote.

Before we move on...

- Universal adult franchise is the cornerstone of Indian democracy.
- The right to vote is a responsibility, too. It needs to be taken seriously by every voter. Voter awareness is an important aspect of the right to vote.
- It is important to facilitate the participation of all eligible voters.
- The Election Commission of India is the Constitutional body that conducts elections in the country.



- The ECI oversees all the elections in the country, including those of the president and vice president.
- Indian democracy faces challenges that call for the voters' vigilance and awareness.

Questions and activities

1. Why is universal adult franchise important for a healthy democracy?
2. What is the meaning of 'secret ballot'? Why is this important in a democracy?
3. Give examples of direct and indirect elections.
4. How is the election of members to the Lok Sabha different from that to the Rajya Sabha?
5. What, in your view, are the advantages of the EVM over paper ballots?
6. Voter turnout has been declining in some urban areas of India. What could be the reasons for this trend, and what steps can be taken to encourage more people to vote?
7. Why do you think a proportion of seats in the Lok Sabha is reserved for scheduled castes and scheduled tribes? Write a short note.
8. Social media is changing the way we experience elections — from catchy campaign reels and live speeches to political debates on Instagram and Twitter. But is this strengthening democracy or confusing it? Discuss in pairs: What are the benefits, what are the challenges, and what might the future of elections be in a digital age?
9. Visit the website <https://www.indiavotes.com>, and choose a parliamentary constituency election from any year and explore its results. Do the same for an assembly election in your state.

The Parliamentary System: Legislature and Executive

The Constitution is not a mere lawyer's document; it is a vehicle of life, and its spirit is always the spirit of the age.

– Alladi Krishnaswami Ayyar

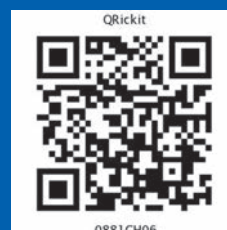
November 1949, Constituent Assembly Debates



Fig. 6.1. Features of the new Parliament building

The Big Questions ?

1. What is India's parliamentary system, and how is it structured?
2. What are the key functions of the Parliament?
3. What are the roles of the legislature and the executive in India's Parliamentary democracy?
4. How are the legislature and the executive organised at the union and state levels?



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The Grade 8 students from Nalanda Vidyalaya were on a school trip to Delhi. Usha, Sukhwinder, Anjali, John, and Farida were especially excited to visit the new Parliament building.

It's not square or round — it's like a soft triangle!

The three-sided design reflects balance, inclusivity, and purpose.

It also uses green construction, cutting electricity use by 30 per cent.



Inside, they saw walls decorated with carvings — peacocks, lotuses, tribal art, temple patterns, and freedom fighters.

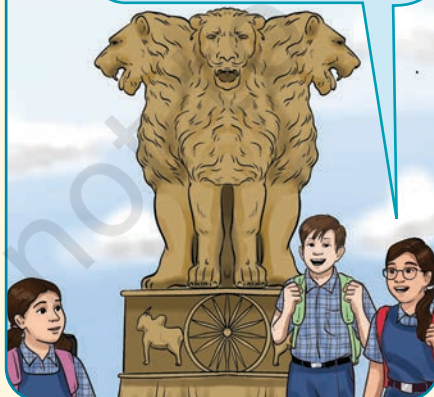
It feels like a museum of India.



The Ashokan emblem!

This new building houses so many ancient symbols!

Exactly, democracy must look ahead — but never forget its roots.



INTRODUCTION

India's independence was achieved through great sacrifices by many people of the country after years of struggle against colonial rule. The citizens of a free country could now make decisions about their own governance. The first important step in this new epoch in the life of our nation was the drafting of the Constitution of independent India. This comprehensive document laid foundational principles for the nation, including that of Universal Adult Franchise which guarantees all adult citizens of the country the right to vote irrespective of their social or economic background, gender, race, or religion.

The people of India directly elect their representatives who become members of the Lok Sabha. A majority group from among these elected representatives forms the government. The Parliament is the supreme legislative body of the government (it makes laws for the country). It comprises all elected representatives of the people and controls and guides the work of the government. The government can therefore be seen as functioning with the people's consent. There have been 17 Lok Sabhas since the first one in 1952. The 18th Lok Sabha was constituted in June 2024.



Fig. 6.2. Our old Parliament (now called Samvidhan Sadan) building was constructed in the 1920s. The Constituent Assembly met there for its deliberations, and it served as Parliament House for over seven decades.



Fig. 6.3. The Parliament Building (Sansad Bhavan) in New Delhi was constructed to accommodate the growing needs including capacity, technology, sustainability and safety.

COMPOSITION OF THE PARLIAMENT OF INDIA

The Indian Parliament is composed of the President and two houses: the Lok Sabha (House of the People / Lower House) and the Rajya Sabha (Council of States / Upper House). This structure with two houses is called a 'bicameral' system ('bi' means two, 'cameral' means chamber / house).



Fig. 6.4. Lok Sabha Chambers in the new Parliament building



Fig. 6.5. A view of the Chamber of the Rajya Sabha taken from the Press Gallery



LET'S REMEMBER

The people of India choose their representatives for the Lok Sabha through a direct election (based on universal adult suffrage). The maximum number of members of this House envisaged by the Constitution is 550. The Members of Parliament (MPs) in the Rajya Sabha are elected indirectly by the electoral college that you read about in the previous chapter. Both, the number of Rajya Sabha seats allocated and the number of MPs represented in the Lok Sabha, are based on the population of each state.



DON'T MISS OUT

We are aware that several aspects of the Indian Constitution were drawn from the constitutions of other countries. Britain's system inspired our system of Parliamentary democracy. However, there were also experiences that our freedom fighters and Constitution makers had — the practical experience gained through participation in British colonial governance structures, even if in a very limited way, that provided familiarity with Parliamentary procedures; the memory of the ancient republics (*mahājanapadas*); the village panchayats where elders made collective decisions, as we learnt in a previous chapter.

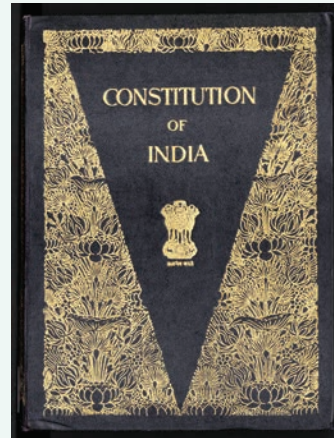


Fig. 6.6. Constitution of India

Extensive discussions took place during the making of the Constitution regarding whether India should have a bicameral system. It was felt that a single directly elected House would be inadequate to meet the challenges independent India would face. In the spirit of 'federalism', it was felt that a Council of States, the Rajya Sabha, was needed. The composition and process of election to the Rajya Sabha were also designed to be different. India practices federalism, which is a form of government where power is distributed between the centre, states, as well as local governments. This system helps to keep the balance between national unity and local interests.

FUNCTION

Each House of the Parliament has a presiding officer to ensure that debates and discussions are conducted in an orderly manner. In the Lok Sabha, the members elect a speaker, who conducts the sessions, allows members to speak, maintains discipline, and ensures that rules are followed. The Rajya Sabha is presided over by the Vice President of India, who acts as its chairperson.



DON'T MISS OUT

Sceptre:
A decorated
rod carried
by a king
or queen at
ceremonies
as a symbol
of their
power

The Sengol, a gold-plated, silver **sceptre** was symbolically handed over to Pt. Jawaharlal Nehru, the first Prime Minister of India, on 14 August 1947 on the occasion of Indian Independence as a powerful symbol to mark the transfer of power. It is now placed near the Speaker's chair in the new Lok Sabha, and served as a symbol of righteous and just rule. Dating back to the Chola period, the Sengol was handed to new rulers as a reminder that power must be guided by dharma and righteousness. At its top sits Nandi, symbolising justice.



Fig. 6.7. The Sengol

To help make Parliamentary discussions accessible to all, translation services are provided in multiple Indian languages. Previously, simultaneous interpretation was available in 12 languages, namely, Hindi, English, Assamese, Bengali, Gujarati, Kannada, Malayalam, Marathi, Odia, Tamil, Punjabi and Telugu. Recently, six more languages were added: Bodo, Dogri, Maithili, Manipuri, Urdu, and Sanskrit. More languages are expected to be added in the future.

The 'executive' responsibility of the Parliament (i.e., ensuring that laws are implemented and enforced) is as important as its 'legislative' function (i.e., the making of laws). The Union Executive gives life to the legislative functions and power of the Parliament. The Union Executive consists of the following members:

- The President,
- The Vice President, and
- The Council of Ministers headed by the Prime Minister.

The Council of Ministers is chosen from among the MPs of both houses of Parliament. These ministers are collectively responsible to the Lok Sabha.

Let us now discuss the Legislative and Executive functions of the Parliament.

LEGISLATIVE FUNCTIONS OF THE PARLIAMENT

The Constitution lays down the key functions that the Parliament needs to fulfil. They can be broadly classified under the following heads:

1. Constitutional functions
2. Lawmaking
3. Executive accountability
4. Financial accountability

We explore them briefly in the sections below.

1) Constitutional function



LET'S REMEMBER

From your previous lessons on the theme of Democracy and Governance, name a few Constitutional functions of the Parliament. Did you list the election of President and Vice President? What about amendments to the Constitution? Indeed, these are vital constitutional functions of the Parliament. There are other important functions that we will explore in higher grades.

The Parliament is directly entrusted with upholding the core values of the Indian Constitution, including:

- a. Enabling parliamentary democracy through universal adult suffrage,
- b. Following the separation of powers between the legislature, executive, and judiciary,
- c. Ensuring federalism, and
- d. Upholding Fundamental Rights and Directive Principles of State Policy by framing laws and policies.

Bill:

A bill is a draft of a proposed law that needs to be approved by the parliament before it can be enacted into law.

2) Lawmaking

Among the primary responsibilities of the legislature is to make laws. The Constitution has laid out an elaborate and rigorous process for lawmaking. A law is generally brought into force through an instrument called an **act**. A **bill**, which is a draft of a proposed law, is introduced in Parliament and goes through a long and effortful journey before it becomes an act. Given below is the journey of how a bill becomes an act, and ultimately a law, in the case of the Right of Children to Free and Compulsory Education Act, 2009 (RTE).



“Most people call me RTE. I came into existence in August 2009, though the idea began almost a century before.

My roots lie in the Directive Principles of State Policy of the Indian Constitution. Though the Constitution makers wanted me implemented within a decade after Independence, this didn't happen, leaving countless children without access to education.

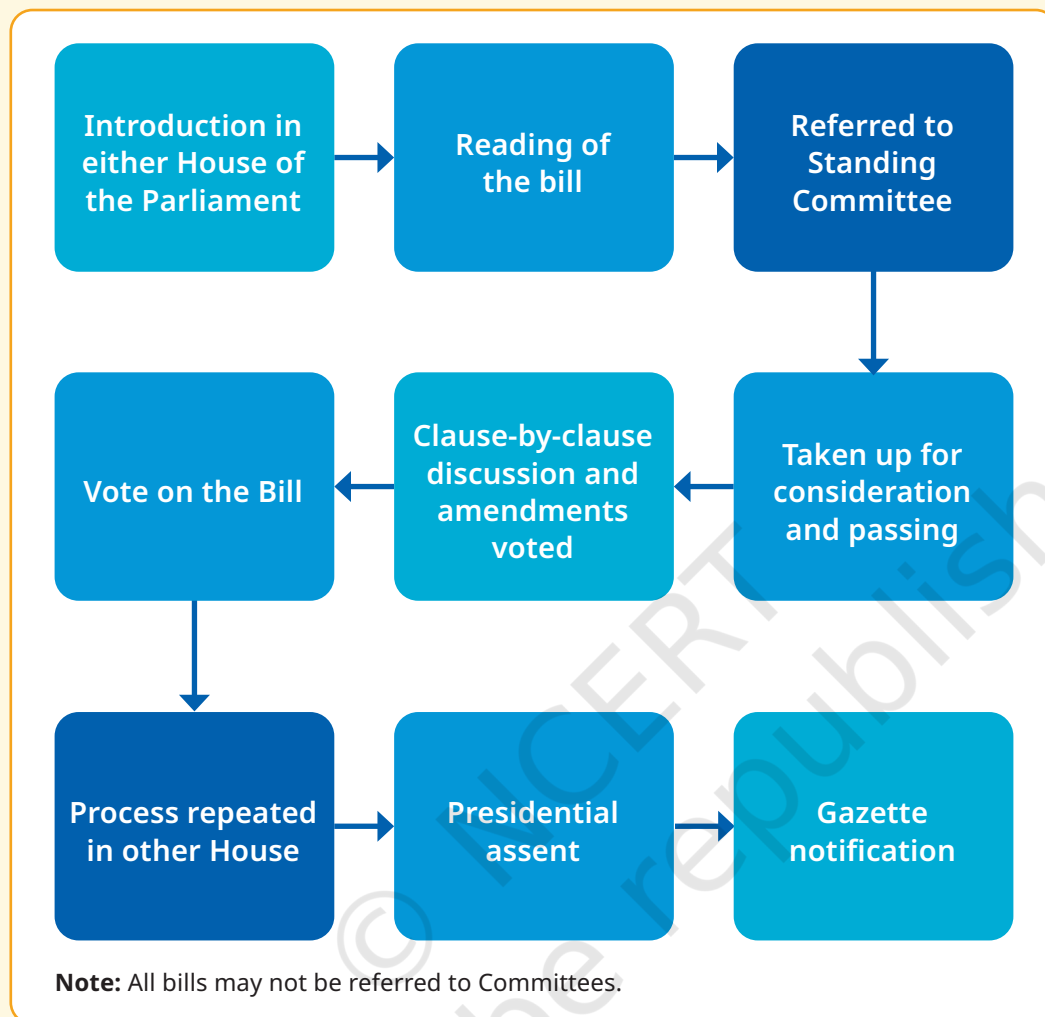
In the early 1990s, someone argued in court that I was inherently part of the Fundamental Rights in the Constitution, namely, the Right to Life — as education is important to lead a meaningful life. Parliamentary action began some years later with the introduction of the 86th Constitutional Amendment Act, 2002, which mandated — as Article 21A of the Constitution — that the state shall provide free and compulsory education to all children between the ages of 6 and 14 years.

Six years later, I was tabled as a bill in the Rajya Sabha. A committee studied me thoroughly and suggested modifications. The major debate concerned funding — new schools, infrastructure, and teachers for millions of children would be costly. By 2008, the MPs determined it was time.

After the 2009 elections, the new government pursued the matter, and in August 2009, I was passed in the Lok Sabha and received the President's assent, becoming an Act.

Today, I've enabled the creation of legal pathways for children to attend school, facilitated new school construction, and ensured free books and uniforms for children.”

From bill to act – the process of lawmaking in the Parliament



Standing Committee:
It is a permanent committee consisting of MPs (the MPs may change, but the committee as a structure remains) that scrutinises government activities, makes recommendations and asks questions on actions taken by the government.

Fig. 6.8. Process of lawmaking – a simplified diagram to illustrate key steps.

Reading: The origins are in the British Parliament. Many MPs were illiterate, so a clerk would read out the contents of the bill for the MPs to discuss. Today MPs read the bill before the discussions take place.

Clause: These are parts of a bill that explain the specific details of the bill; eg. RTE defines the age group to which it applies (6 to 14 years).

Gazette: This is an official government publication that announces legal documents and official information.



LET'S EXPLORE

Draw a small chart to show the process of how RTE became an act. What do you think the process would be if RTE had been tabled in the Lok Sabha?



DON'T MISS OUT

Some types of bills have to be tabled only in the Lok Sabha. One example is a 'Money Bill' that is concerned with financial matters (including taxation, government borrowing, etc.). It is essentially a draft law that can be introduced only in the Lok Sabha; however, the introduction of the bill requires the prior recommendation of the President.

3) Executive accountability

The Prime Minister and the Council of Ministers are part of the Union Executive. They are:

- primarily responsible for implementing and enforcing laws and overseeing the effective running of the government;
- take decisions regarding the day-to-day functioning of the government based on the principles laid out in the Constitution and its laws;
- answerable to the Lok Sabha, through mechanisms like the Question Hour which require ministers to justify their actions and decisions. The Question Hour in the Lok Sabha is a select period (typically the first hour of a Parliamentary session) where MPs can ask the ministers questions about government policies and activities. It is a process of the Parliament that holds the Executive 'accountable' (i.e., it must justify all actions and decisions). Special committees also hold meetings where ministries have to explain and answer questions about their policies. These committees may include MPs from different political parties.

The Parliament isn't always formal and serious. Sometimes, the atmosphere is set through poetry and humour!

Example 1: Verse in the Parliament

While presenting the Union Budget for the year 2025-26 on the 1st of February, 2025, Smt. Nirmala Sitharaman recited the following verse from *Tirukkural* (an ancient Indian treatise in Tamil on ethics and morality):

*Vaanokki vaalum ulakellaam
Mannavan koalnokki vaalung kudi.*

It means:

*Just as living beings live expecting rains,
Citizens live expecting good governance.*

On hearing this, there was an enthusiastic thumping of desks from the Treasury Benches.



Example 2: Humour in the Parliament

In 2011, during a spirited debate in the Lok Sabha, Parliamentary Sushma Swaraj quoted a poetic verse to criticise the government:

*“Tu idhar udhar ki na baat kar, yeh bata ki kafilā kyun lūta,
humein rahjano se gila nahi, teri rahbari ka sawal hai.”*

Don't change the topic, just say why the caravan was looted. We have no complaint with the robbers, but this is a question on your leadership.

In response, the then Prime Minister Dr. Manmohan Singh calmly replied with another poetic line:

*“Maana ki teri deed ke qabil nahin hoon main, tu mera shauq
dekh mera intezaar dekh.”*

I admit that I am not worthy of your sight; you should look at my zeal and my perseverance.

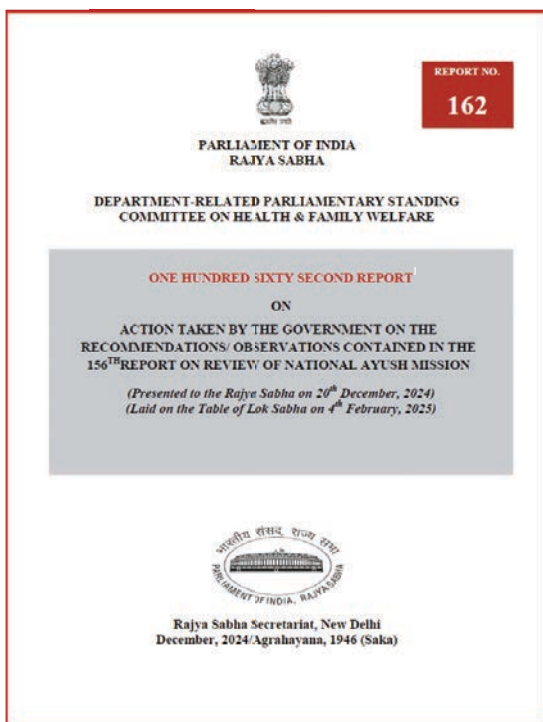


Fig. 6.9. Extract from a report of the Standing Committee on Health and Family Welfare

1.2 Co-location of Ayush facilities at Primary Health Centers (PHCs), Community Health Centers (CHCs) and District Hospitals (DHs)

Recommendation:

1.2.1 The Committee, at this juncture, notices that in some states and UTs, a separate Department of Ayush has not been opened. The Committee, to boost the Ayush system and for better coordination in Ayush Healthcare, recommends the Ministry of Ayush to impress upon and persuade the States and UTs with no separate department of Ayush to create such a department for speedy development and implementation of Ayush sector and schemes respectively.

(Para 2.13 of the Report)

Action Taken:

1.2.2 Public Health is being a state subject, creation of separate Department of Ayush in the States/UTs comes under purview of respective State/UT Governments. However, Ministry of Ayush has requested State/UT Governments in different meetings to create separate Directorates, deployment of manpower in SPMU & DPMU in the States/UTs for speedy development and implementation of NAM scheme. As on date, separate Ayush Directorate is available in 24 States/UTs. (SPMU=state project management unit; DPMU=district project management unit)

(Para 2.23 of the Report)



LET'S EXPLORE

Given here is an extract from the report of meetings between the Standing Committee on Health and Family Welfare and the officers from the Ministry of Health and Family Welfare. Observe the screenshots above and discuss the following in small groups — Who is reporting to whom? What is the subject that has been reviewed? Identify the Committee's recommendation. What is the government's reply?

4) Financial accountability

The Parliament approves and monitors government expenditure through the annual budget, and examining the distribution of funds to different ministries.

LET'S EXPLORE

Why do you think that Parliament keeps an eye on government expenditure? (*Hint: Whose money does the government spend?*)

The government is expected to provide the necessary information to Parliament in a timely and accurate manner.

EXECUTIVE FUNCTIONS OF PARLIAMENT

We have uncovered a few points on the role of the executive in the previous sections. We look at this a little more closely now.



DON'T MISS OUT

Part V of the Indian Constitution begins with Chapter I — The Executive. It looks at the roles and responsibilities of the President, Vice President, and Council of Ministers, among others. It is in Chapter II that the role and functions of Parliament are listed. Why might this be so?

1) The President

The President is the Head of State and the nominal head of the Executive. The Prime Minister and the Council of Ministers are responsible for running the government. The President appoints the Prime Minister and other ministers, summons the Parliament, and gives assent to bills, among other functions. The Council of Ministers aids and advises the President. However, in specific circumstances, the President can exercise discretionary powers, particularly during political crises, like when no party holds a clear majority in a Lok Sabha election.



2) The Prime Minister and the Council of Ministers

The Prime Minister is the de facto executive authority in India's Parliamentary system. The President appoints the leader of the majority party or coalition in the Lok Sabha as the Prime Minister. The Prime Minister serves with the support of the majority of the MPs in the Lok Sabha.

The Prime Minister's key functions include:

- Leading the Council of Ministers
- Coordinating the work of different ministries
- Advising the President
- Shaping national policies

The Prime Minister and the Council of Ministers take decisions and run the government. They are collectively responsible to the Lok Sabha. Most of the bills that come to the Parliament for discussion are initiated by the government. A permanent group of officials — called 'civil servants' — help in implementing laws and policies. These officers, often called administrators or bureaucrats, work under the direction of ministers and ensure that government departments function smoothly.

LET'S EXPLORE

If the Executive is part of the Legislature, how do we say that there is separation of power? (*Hint: revisit the section on legislature above*)

DON'T MISS OUT

In 1956, Railway Minister Lal Bahadur Shastri resigned after a train accident. Although he was not blamed for the accident, he believed that a minister must take moral responsibility for anything that happens in their ministry. He offered his resignation to the then Prime Minister Jawaharlal Nehru; Nehru declined at first, but Shastri insisted. Finally, his resignation was accepted.



Fig. 6.10. Lal Bahadur Shastri (Minister for Railways and later Prime Minister of India)

Differences Between the Legislature and the Executive

It is important to understand some key differences between the Legislature and the Executive. The following table briefly summarises the distinctions.

Aspect	Legislature	Executive
Composition	The Parliament of India is the supreme legislative body of the country, composed of the President, the Lok Sabha and the Rajya Sabha.	The Executive is composed of the President, the Vice-President, and the Council of Ministers headed by the Prime Minister.
Main Role	Making laws and overseeing the work of the Executive	Enforcing the laws made by the Legislature
Functions	Can introduce some bills in the Parliament	Most of the bills are introduced by the Executive in the Parliament
	Keeps a check on the activities of the Executive by asking questions and seeking explanations	Provides information and explanations to the Legislature on its decisions and actions. Aids and advises the President on important matters, including calling sessions of Parliament.
	Sanctions all government-related expenses	Prepares and implements the budget approved by Parliament.
	Consults different Parliamentary committees	Can function independently in day-to-day matters and may consult committees when required.

THE JUDICIARY — ROLE OF CHECKS AND BALANCES

The Judiciary is the branch of government that is responsible for interpreting and applying the laws of the land, including in specific cases of disputes. The Judiciary functions through a system of courts and plays a pivotal role in maintaining the democratic nature of society and governance. The Judiciary acts as the custodian of the Constitution, ensuring that all branches of the government operate within the principles and parameters enshrined in the Constitution. It keeps a check on the effective functioning of society and institutions of the government by interpreting laws, resolving disputes, and safeguarding fundamental rights.

The Constitution not only describes how the Legislature and Executive are given power to govern the country, but it also lists the specific responsibilities of these organs. To ensure that the powers of the Legislature are used properly and responsibilities are followed, the Judiciary is given the unique and critical responsibility of checking that the laws passed by Parliament have not violated the Constitutional framework. Similarly, if a violation of the Constitution occurs when the laws are implemented by the Executive, the Judiciary again has the power to step in. Just as the Parliament functions through its Legislature and the Executive arms, the Judiciary functions through its Courts.

In this chapter, we have explored how the organs within the Parliament balance making of the law and executing it, and how the Judiciary checks these actions. These are all examples of the separation of powers and the system of checks and balances among the Legislature, the Executive, and the Judiciary, ensuring that no one organ becomes too powerful.

LET'S EXPLORE

- What might happen if one of the organs — Legislature, Executive, Judiciary — had all the power? How could it affect the rights of people? Discuss with your classmates

how each organ checks the others. For example, how does the Legislature question the actions of the Executive? How does the Judiciary make sure that laws and government actions respect the Constitution? Do you think there might be ways in which the actions of the Judiciary itself are reviewed?

- Can you find examples where the Judiciary has asked lawmakers to review a law? Can you find any instances when the implementation of a law has been questioned by the Judiciary?



We will learn more about the Judiciary in a later chapter.

LEGISLATIVE AND EXECUTIVE FUNCTIONS AT THE STATE LEVEL

As discussed, the Union Government has a Parliament with legislative and executive functions. Similarly, each state has its own legislature and executive, called its 'State Assembly'. Just as the Parliament has Members of Parliament (MPs) who make laws, there are Members of Legislative Assembly (MLAs) who formulate laws on subjects that are on the 'State List' and on the 'Concurrent List'.

Union List, State List, and Concurrent List

The Constitution has lists that help to clarify the areas on which the Union and State governments can exclusively legislate, called the Union List and the State List, respectively. There is also a Concurrent List that has subjects on which both the Union and State governments can legislate. However, in the case that the Union government legislates on a subject in the Concurrent List, the state government is bound to follow it. In the case of RTE, for example, the Act is applicable all over India even though education is in the Concurrent List.

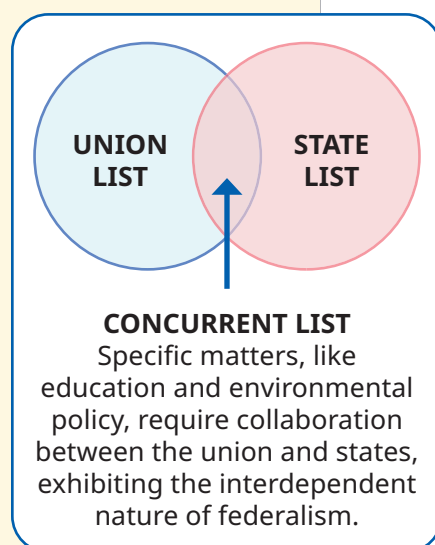


Fig. 6.11

Parallel Structure of Union and State Governments in India

The structure at the state-level imitates the one at the union-level. You can see this structure across both levels in the table:

Feature	Union Government	State Government
Constitutional Head	The President of India elected by an electoral college	Governor of the State appointed by the President
Term of Office (Head)	5 years	5 years
Executive Head	The nominal head is the President, but the Prime Minister is the <i>de facto</i> executive authority at the centre	The nominal head is the Governor, but the Chief Minister is the <i>de facto</i> executive authority of the state
Selection of Executive	Leader of majority party/ coalition in Lok Sabha	Leader of majority party/ coalition in Vidhan Sabha
Council of Ministers	Selected by Prime Minister	Selected by Chief Minister
Responsibility	Collectively responsible to Lok Sabha	Collectively responsible to Vidhan Sabha
Legislature Structure	Bicameral - Lok Sabha and Rajya Sabha	Can be unicameral (Vidhan Sabha only) or bicameral (Vidhan Sabha and Vidhan Parishad)
Lower House	Lok Sabha (House of the People)	Vidhan Sabha (Legislative Assembly)
Upper House	Rajya Sabha (Council of States)	Vidhan Parishad (Legislative Council) - in some states only
Term of Lower House	5 years	5 years
Presiding Officer (Lower House)	Speaker	Speaker
Legislative Powers	Makes laws on subjects in Union List and Concurrent List	Makes laws on subjects in State List and Concurrent List
Financial Powers	Money bills originate only in Lok Sabha	Money bills originate only in Vidhan Sabha

Structure of State Legislatures

Unlike the Centre, the State legislatures can be ‘unicameral’ (having only one house) or ‘bicameral’ (having two houses). The legislative assembly is called the *Vidhan Sabha*, and the legislative council (the upper house) is called the *Vidhan Parishad*. The states having a bicameral system are Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana, and Uttar Pradesh, while the remaining states have a unicameral system.



Fig. 6.12. Vidhana Soudha houses the legislature in Karnataka. This building was envisioned by Kengal Hanumanthaiah, who was a freedom fighter and a member of the Constituent Assembly, Chief Minister of Karnataka, and later a Member of Parliament.

LET'S EXPLORE

What type of legislature does your state have?



CHALLENGES TO THE EFFECTIVE FUNCTIONING OF THE LEGISLATURES

As discussed, the Indian legislature (including the Parliament at the Centre and the State Assemblies) has the critical and vital role of enacting laws, overseeing administrative processes, and approving the budget. It also provides a platform for discussing national policies, development plans, international relations, and addressing public grievances. However, the legislature also faces several challenges in its effective functioning.

Productivity:

In the Parliamentary context, productivity is measured by the number of hours either the Lok Sabha or Rajya Sabha actually functioned against the time it was scheduled to.

Some of these can include regular absenteeism of members, non-cooperative conduct or communication of members, reduced quality of important debates, and disruptions of the Question Hour.

The Parliament typically meets three times a year. These meetings are called 'sessions' — Budget Sessions, Monsoon Sessions and Winter Sessions. Each of these has 'sittings', where the Parliament meets to deliberate upon proposed laws, discuss important matters of governance, and seek explanations from the Executive on its decisions and actions. Usually, the Parliament sits for 6 hours a day during sessions. This can be extended on special occasions or when there is a need to complete urgent business. The State Assemblies too, have similar schedules.

LET'S EXPLORE

→ Study the data given in the following table. What conclusions can you draw about the functioning of Parliament over time? Compile data for more recent years.

Period of Lok Sabha	Number of sessions	Number of sittings
1 st Lok Sabha (1952-1957)	14	677
2 nd Lok Sabha (1957-1962)	16	567
10 th Lok Sabha (1991-1996)	16	423
13 th Lok Sabha (1999-2004)	14	356

→ Read the following statement of the former chairman of the Rajya Sabha, M. Venkaiah Naidu given in 2021: "...the productivity of Rajya Sabha during 2004-14 has been about 78% and it declined to about 65% since then. Of the 11 sessions [that he presided over], four of them clocked low productivity of 6.80%, 27.30%, 28.90% and 29.55%; during the year 2018, the Rajya Sabha recorded the lowest ever **productivity** of 35.75% under the impact of disruptions." What conclusions can you draw from this statement? What implications does this have for the role that the Rajya Sabha is expected to play?

The Parliament and the State Assemblies have been envisioned as spaces for thoughtful debates and discussions where laws are made in the interest of the people. However, when debates are disrupted, sessions are cut short and some bills take years to be discussed and passed, it becomes a matter of concern.

LET'S EXPLORE

- Take up a small group project. Compile data regarding the functioning of the legislature in your state or union territory.
- Seek an appointment with an MLA and gather information about challenges with respect to the state legislature.

Concerns have been expressed by sections of the society about the fact that a substantial proportion of their representatives in the Lok Sabha have criminal cases against them, and that many sessions are marked by angry or biased debates that do not seriously address issues affecting the people.

The media also plays an important role in communicating the concerns of the electorate. These cartoons express them with humour, a practice common to all healthy democracies.



Fig. 6.13.a. Monsoon Session: Expect thunder, lightning, storms, breaches etc. It's Monsoon Session.

Fig. 6.13.b. Scrutiny of papers filed by candidates

Yet, our democracy grows stronger when citizens stay informed and engaged. By asking questions, sharing their views, and participating in public discussions, people help shape better policies. Therefore, one of the best ways to overcome the challenges India faces regarding its legislature, is to ensure that many more citizens stay informed on matters of importance to society, participate in discussions through public debate on digital spaces that various government departments offer during policymaking processes, and constructively engaging with political representatives on policies.

Many more young leaders and diverse voices are entering public life, and technology is making it easier to stay connected and involved with governance. As future voters, your choices, and participation will play a key role in strengthening our Parliament and the assembly of the state you belong to, ensuring that they truly serve all people.



DON'T MISS OUT

- Atal Bihari Vajpayee, a former Prime Minister of India, said during a speech in the Lok Sabha, *“Sarkaarein aayengi, jaayengi. Paartiyaan banengi, bigadengi. Lekin yeh desh rehna chaahiye, is desh ka loktantra amar rehna chaahiye.”* (Governments will come and go, parties will rise and fall. But the nation must endure, and its democracy must live on.)

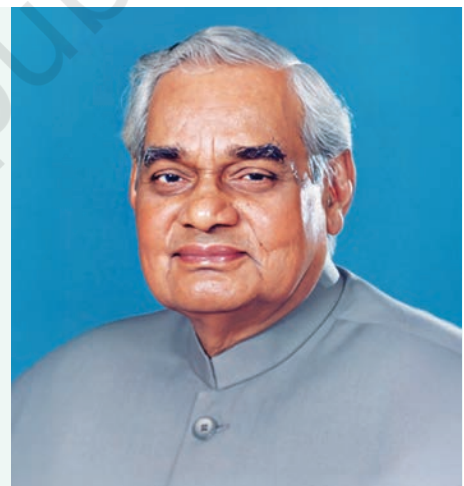


Fig. 6.14. Atal Bihari Vajpayee

- What message do you think this gives about the role of Parliament and leaders in a democracy? Why is it important to protect democratic values even when political power changes?

Before we move on...



- India's Parliamentary system ensures that power is shared, decisions are debated, and leaders are held accountable.
- The Legislature makes laws, the Executive implements them, and the Judiciary ensures that they follow the Constitution.
- The Parliament represents the voice of the people and reflects the federal spirit of our democracy.
- Both at the Centre and in the states, structures are designed to balance representation, responsibility, and unity.
- Checks and balances between institutions help protect citizens' rights and uphold democratic values.
- The functioning of the Parliament needs to become more efficient and productive so that the country's progress is not thwarted.

Questions and activities

1. Find out how many representatives from your state are in each House of the Parliament.
2. What makes the Indian Parliament the “voice of the people”? How does it ensure that different opinions are heard?
3. Why do you think the Constitution made the Executive responsible to the Legislature?
4. Why do you think we have chosen the system of bicameral legislature at the Union level?
5. Try to track the journey of a recent bill passed by the Parliament. Identify in which House it was introduced. Were there any major debates or disagreements? How long did it take for the bill to become a law? Use newspaper archives, government websites, and Lok Sabha debates, or ask your teacher for help.

6. Choose a recent law passed by the Parliament. Divide into teams to role-play different parts of the process — MPs debating in Lok Sabha and Rajya Sabha, ministers answering questions, and the President giving assent. Present a short skit showing how a bill becomes a law; enact a ‘model Parliament’.
7. The Women’s Reservation Bill, 2023, was passed with wide support. Why might it have taken over 25 years for this bill to be passed, despite being discussed for so long?
8. Sometimes the Parliament is disrupted and does not function for the number of days it is supposed to. What impact do you think this has on the quality of laws and the trust people place in their representatives?
9. Can you create ‘interest’ groups among students and list questions related to any policy that you may want to ask your MP and / or your MLA? How would these questions be different if it is to the MP instead of the MLA, and vice versa?
10. What is the role that the Judiciary plays in Indian democracy? What could happen if we didn’t have an independent judiciary?